

Ramesh Nath Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 May 2023 · 2023:AHC:106234-DB · WRIT - C No. - 43073 of 2019 ·
Writ dismissed for want of prosecution; Code not construed.

HEADNOTE

Writ-C No. 43073 of 2019, earlier listed so that the petitioner could annex the Executive Engineer's order under Clause 6.5 of the U.P. Electricity Supply Code, 2005, was dismissed for want of prosecution when none appeared even in the revised call. The Court did not construe Clause 6.5 or decide the underlying billing dispute.

FACTUAL SUMMARY

Ramesh Nath Pandey filed Writ-C No. 43073 of 2019 against the State of U.P. and another. On 2 January 2020 the Court listed the matter so the petitioner could file a supplementary affidavit annexing the Executive Engineer's order under Clause 6.5 of the U.P. Electricity Supply Code, 2005. On 12 February 2020 respondent no. 2 was given three weeks to counter. On 16 May 2023 none appeared for the petitioner even on the revised call.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

Where none appeared for the petitioner even in the revised call, the Division Bench dismissed the writ for want of prosecution without construing Clause 6.5 of the U.P. Electricity Supply Code, 2005 or deciding the billing dispute. ¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction The writ was listed for a supplementary affidavit of the Executive Engineer's Clause 6.5 order and later for a counter, then dismissed for want of prosecution; no portable construction of Clause 6.5 was laid down. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CHALLENGE AND ANY EXECUTIVE ENGINEER ORDER UNDER CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The writ was dismissed for want of prosecution without examining the bill or the Clause 6.5 record. ¶ 1-2